

9:00 7	25CV480218	Jeremy Ryan vs Apple Inc.	See below
9:00 8	25CV481843	Velocity Investments vs. Shaina Garcia	Case off calendar
9:00 9-10	25CV458845	Valerie Phillips vs Warren Outlet 957	OFF CALENDAR
9:01 2	24CV443177	Jake Pauer vs Santa Clara Electrical Joint Apprenticeship and Training Trust	Plaintiff's attorney moves to be relieved as counsel. Plaintiff's motion is GRANTED.
9:01			

Line 7

Calendar Line 7

Case Name: *Ryan v. Apple Inc.*

Case No.: 25CV480218

Defendant Apple Inc. (“Defendant” or “Apple”) demurs to the first amended complaint’s (“FAC”) first cause of action for false advertising in violation of Business and Professions Code section 17500 and second cause of action for unfair business practices in violation of Business and Professions Code section 17200.

“[T]o state a claim under either the UCL or the false advertising law, based on false advertising or promotional practices, ‘it is necessary only to show that ‘members of the public are likely to be deceived.’” (*Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 356; see also *Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 508 (stating that “[l]ikely to deceive’ implies more than a mere possibility that the advertisement might conceivably be misunderstood by some few consumers viewing it in an unreasonable manner... [r]ather, the phrase indicates that the ad is such that it is probable that a

significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled”).) The first and second causes of action allege that the phrase “panel of judges” as used to describe the people evaluating the contestants on the reality show *Killer Whales* is deceptive because it “suggest[s] credible evaluators acting in a gatekeeping or vetting role.” (FAC, ¶¶ 7-12, 22-27, 32-35.) However, the applicable definition of a judge in this situation is “one appointed to decide in a contest or competition.” (Webster’s 9th New Collegiate Dict. (1991), p.653; see also Merriam-Webster, “Judge,” Merriam Webster.com Dictionary <<https://www.merriam-webster.com/dictionary/judge>> (as of May 19, 2026).) As a matter of law, the first and second causes of action fail to allege facts demonstrating a likelihood of deception. (See *Brockey v. Moore* (2003) 107 Cal.App.4th 86, 100 (stating that “the primary evidence in a false advertising case is the advertising itself”); see also *Hill v. Roll Internat. Corp.* (2011) 195 Cal.App.4th 1295, 1301 (stating that “a demurrer must be sustained when the assumed facts show lack of a valid claim” for violation of sections 17200 or 17500); see also *Rubenstein v. The Gap, Inc.* (2017) 14 Cal.App.5th 870, 877 (stating that “courts can and do sustain demurrers on UCL claims when the facts alleged fail as a matter of law to show such a likelihood... of deception”); see also *Brady v. Bayer Corp.* (2018) 26 Cal.App.5th 1156, 1165 (stating that “[i]f a claim of misleading labeling runs counter to ordinary common sense or the obvious nature of the product, the claim is fit for disposition at the demurrer stage of the litigation”); see also *Seelig v. Infinity Broadcasting Corp.* (2002) 97 Cal.App.4th 798, 800-801 (stating that in “[r]eality television... real people often compete for a prize under the most unrealistic, often demeaning conditions”).) Additionally, in opposition, Plaintiff fails to cite to any case authority to support his position. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party “fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Arega v. Bay Area Rapid Transit Dist.* (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”).) Further, Plaintiff does not demonstrate how the

causes of action may be amended. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (California Supreme Court stating that “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”); see also *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 (stating same).) Defendant’s demurrer to the first and second causes of action is SUSTAINED without leave to amend.

Defendant shall prepare and submit a proposed order consistent with the Court’s tentative ruling.